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NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH
COURT NO.1

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, BENGALURU BENCH, BENGALURU, HELD ON 30.08.2018.

PRESENT: 1.Hon'ble member (J) **Shri Rajeswara Rao vittanala,**
2.Hon'ble member (T) D**r. Ashok Kumar Mishra**

CP/CA No	Purpose	Section	Name of Petitioner	Petitioner Advocate	Name of Respondent	Respondent Advocate
CP(CAA) No.19/BB/2018	For being mentioned	Sec 230-232	M/s Meadows Consulting Services Pvt Ltd	SPJ Legal		

SL. NO.	NAME (IN CAPITAL) & PHONE NUMBER	REPRESENTATION TO WHOM	SIGNATURE

PETITIONER/s : SATISH JOHN SPJ Legal Advocate for petitioners

RESPONDENT/s : For RoC PREMA HATTI

PTO

ORDER

Heard Shri Saji P. John, learned Counsel for Petitioner; Smt. Prema Hatti, Standing Counsel for ROC & RD.

The learned Counsel for Petitioner is directed to file clarification with regard to appointed date.

The ROC-Karnataka has filed Affidavit dated 19/07/2018 by inter-alia, stating the scheme under this section shall clearly indicate an appointed date from which it shall be effective and scheme shall be deemed to be effective from such date and not at a date subsequent to the appointed date; as per Clause 11.1 of the Scheme the Petitioner/Transferee Company has sought complete waiver off the fee and stamp duty payable on account of consolidation of the authorized share capital of the transferor and transferee company which is not acceptable in view of the provisions of Section 232 (3) (i) of the Companies Act, 2013. The Transferee Company has to pay the differential fee and stamp duty on the increase of authorized capital after setting off the fee if any paid by the Transferor Companies.

Therefore, it requires to modify the main Company Petition itself. The learned Counsel for Petitioner is directed to clarify the above observations made by the ROC-Karnataka, before the next date of hearing.

Post the case on 28/09/2018.

MEMBER (T) **MEMBER (J)**

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